occasion, he described the judgement as betraying a 'conservative and retrograde outlook' for the judiciary.[36] At a National Seminar on Constitutional Law held at Siddharth College, Bombay, Shiv Shanker commented – in the presence of no less than Justice Bhagwati – that had the court kept in mind the principles laid down in the Preamble, the controversy of the supremacy of fundamental rights over directive principles could have been avoided.[37]

It soon became clear that the government's reaction would not stop at displeasure. Several political parties offered suggestions and questioned the government on how it would react to the decision. One MP from the Communist Party asked whether the government would be willing to hold broad-based consultation among political parties. Shiv Shanker saw no purpose being served in such consultations. Another MP asked whether the government intended to organize a full-scale parliamentary debate on the issue – a suggestion that was also rejected. The law minister also dismissed the idea of a presidential reference seeking the advisory opinion of the Supreme Court.[38] Criticism of the judges that decided the case in the Rajya Sabha led retired Supreme Court Justice M. Hidayatullah (then vice president and, therefore, chairman of the Rajya Sabha) to remind members on several occasions of the constitutional provision[39] that prevented discussion on the conduct of judges in Parliament.[40]

Still more radical suggestions to overturn the Supreme Court's judgement were on the table. These included organizing a popular referendum on constitutional amendment,[41] and 'converting' the houses of Parliament into an interim Constituent Assembly with the power to 'amend' any provision of the Constitution, including its basic structure.[42] The option ultimately selected by the law minister was, or at least appeared, somewhat more benign. He elected to ask the Supreme Court to reconsider its decision through a review petition. According to the law minister, the timing of filing the petition was a matter of litigation 'strategy'[43] – a euphemism for filing at a moment when it was likely to arise for hearing before judges that were sympathetic to the government's position.